THE SOURCE OF HOPE · SERVING HOPE AT CORNERSTONE KITCHEN

Serving Hope Volunteer Agreement, Assumption of Risk and Release of Liability

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PLEASE READ CAREFULLY. THIS IS A RELEASE OF LIABILITY THAT AFFECTS YOUR LEGAL RIGHTS.

1. Agreement to Volunteer. I, _____ *(print full legal name)*, voluntarily agree to volunteer in the Serving Hope program of The Source of Hope ("TSOH"), including activities conducted at or in partnership with **Cornerstone Kitchen** and **Cornerstone Community Development Corporation, Inc.** (together, "Cornerstone Kitchen"). This Agreement applies to every Serving Hope meal, service, and activity I take part in, including events held at partner locations, from the date I sign it until I give TSOH written notice that I am ending my volunteer service.

2. Released Parties. The "Released Parties" are TSOH and Cornerstone Kitchen, together with their respective founders, officers, directors, board members, employees, volunteers, mentors, interns, students, agents, representatives, contractors, subcontractors, vendors, donors, food providers, sponsors, community partners, host organizations, property owners, program partners, and participating partner personnel, and their successors and assigns.

3. Volunteer Status. I am a volunteer, not an employee of any Released Party. I will not be paid for my time and am not entitled to wages or benefits, including unemployment or employment insurance benefits. I choose the dates and times I volunteer, and TSOH may decline, reschedule, or end my participation at any time.

4. Activities and Assumption of Risk. Serving Hope activities include food preparation, cooking, meal packaging, food distribution, cleaning and sanitation, loading and unloading supplies, lifting and carrying items up to 40 pounds, working around kitchen equipment, hot surfaces, and knives, and serving community members. Risks include, but are not limited to, cuts, burns, and scalds; slips, trips, and falls; strains and back injuries; exposure to cleaning chemicals, food allergens, weather, and contagious illness; the actions of others; and loss of or damage to personal property. **I KNOWINGLY AND VOLUNTARILY ASSUME ALL OF THESE RISKS, KNOWN AND UNKNOWN, INCLUDING RISKS ARISING FROM THE NEGLIGENCE OF THE RELEASED PARTIES. Initials:** _____

5. Food, Health, and Safety. I am physically able to take part and will tell a team member about any medical condition, food allergy, dietary restriction, or limitation that may affect my safety. Food may be home cooked, donated, or commercially prepared and may contain milk, eggs, wheat, soy, peanuts, tree nuts, fish, shellfish, sesame, or other allergens. TSOH and Cornerstone Kitchen cannot guarantee that food is free of allergens or prepared in a kitchen free of allergens. I will ask about ingredients and will not eat anything I am unsure is safe for me. I will follow all food safety, sanitation, food storage, reheating, facility, and activity safety instructions of TSOH and Cornerstone Kitchen staff; will not prepare or serve food while sick; will report any food concern, illness, injury, or unsafe condition to a team member immediately; and may decline any task I am not comfortable doing.

6. RELEASE OF LIABILITY AND AGREEMENT NOT TO SUE. IN EXCHANGE FOR BEING ALLOWED TO VOLUNTEER, I, ON BEHALF OF MYSELF AND MY HEIRS, ASSIGNS, GUARDIANS, AND LEGAL REPRESENTATIVES, RELEASE, DISCHARGE, AND AGREE NOT TO SUE THE RELEASED PARTIES, INCLUDING THE SOURCE OF HOPE, CORNERSTONE KITCHEN, AND CORNERSTONE COMMUNITY DEVELOPMENT CORPORATION, INC., FOR ANY AND ALL CLAIMS, KNOWN OR UNKNOWN, FOR PERSONAL INJURY, ILLNESS, DEATH, OR PROPERTY DAMAGE ARISING OUT OF MY PARTICIPATION IN SERVING HOPE OR MY PRESENCE AT ANY ACTIVITY SITE, INCLUDING CLAIMS ARISING FROM THE NEGLIGENCE OF ANY RELEASED PARTY, WHETHER SOLE, JOINT, CONCURRENT, ACTIVE, OR PASSIVE. THIS RELEASE DOES NOT APPLY TO GROSS NEGLIGENCE, INTENTIONAL MISCONDUCT, OR ANY CLAIM THAT CANNOT BE RELEASED UNDER TEXAS LAW. I will indemnify and hold harmless the Released Parties from claims by others arising from my own negligent or intentional acts. **Initials:** _____

7. Medical Treatment. I AM NOT COVERED BY ANY WORKERS' COMPENSATION PROGRAM OF TSOH OR CORNERSTONE KITCHEN, and I am responsible for my own medical costs. If I am injured or ill and unable to consent, I authorize TSOH and Cornerstone Kitchen staff to seek emergency medical treatment for me at my expense. **In an emergency, call 911 first,** then notify TSOH at 469-969-0244 or info@thesourceofhope.org.

8. Property, Privacy, and Photos. Tools, materials, food, and supplies remain the property of TSOH or Cornerstone Kitchen, and I will return them. I will treat guests with dignity and will not photograph them or share their personal information without their permission and TSOH's approval. I authorize TSOH and its partners and sponsors, including Cornerstone Kitchen, to photograph and record me and to use my name, image, likeness, and voice, without compensation, for educational, promotional, fundraising, website, social media, print, and other nonprofit purposes, until I withdraw this permission in writing (future uses only). Opting out will not affect my ability to volunteer. ☐ **I do NOT give permission** to use my photo, video, or voice.

9. General Terms. This Agreement is governed by Texas law and does not limit any immunity or other protection available to the Released Parties under applicable law. If any part is found unenforceable, the rest remains in effect.

I HAVE CAREFULLY READ THIS AGREEMENT AND UNDERSTAND THAT IT IS A RELEASE OF LIABILITY AND THAT I AM GIVING UP CERTAIN LEGAL RIGHTS, INCLUDING THE RIGHT TO SUE FOR NEGLIGENCE. I AM 18 OR OLDER, OR MY PARENT OR GUARDIAN HAS SIGNED BELOW. I SIGN THIS AGREEMENT VOLUNTARILY AND OF MY OWN FREE WILL.

_____ Volunteer signature

_____ Date

_____ Date of birth

_____ Printed full name

_____ Phone

_____ Email

_____ Emergency contact name

_____ Relationship

_____ Emergency contact phone

Parent or guardian (required if volunteer is under 18): I am the parent or legal guardian of the minor named above. I have read this Agreement, consent to my child's participation, and agree to its terms for myself and, to the fullest extent permitted by law, for my child. I will discuss my child's food allergies, safety concerns, and photography preferences with a team member.

_____ Parent or guardian signature

_____ Printed name

_____ Date

FOR TSOH USE: Received by _____ Date _____